JUSTICE THOMAS, with whom JUSTICE GORSUCH joins, concurring in the judgment.

David Villarreal testified in his own defense at his murder trial. Partway through Villarreal's testimony, trial recessed for the day. The trial judge gave Villarreal and his counsel an order limiting what they could discuss during the break in his testimony. The judge told them that they could confer with each other overnight, but not about Villarreal's ongoing testimony. Villarreal was convicted. He now challenges the trial judge's order as violating his Sixth Amendment right to counsel.

The trial judge's order did not violate Villarreal's right to counsel under our precedents. In *Geders* v. *United States*, 425 U. S. 80 (1976), this Court held that a trial judge cannot bar a testifying defendant from conferring with counsel overnight because of his interest in discussing matters "other than his own testimony." *Id.*, at 88. In *Perry* v. *Leeke*, 488 U. S. 272 (1989), this Court held that a trial judge can bar a testifying defendant from conferring with counsel during a 15-minute recess. *Id.*, at 274, 283–284. Whatever right a defendant has to discuss other matters, the Court held, he has no "right to discuss [his] testimony while it is in process." *Id.*, at 284. The trial judge's order prohibiting discussion of Villarreal's ongoing testimony plainly complied with both precedents.

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I cannot join the Court's opinion because it opines on hypothetical situations not before the Court and needlessly expands our precedents. I therefore respectfully concur only in the judgment.

I

Petitioner David Villarreal was charged with murder and tried in Texas state court. Villarreal took the stand to testify in his own defense. While Villarreal was still on direct examination, the judge had to recess trial for the day due to a scheduling conflict. Ordinarily, a witness cannot consult with counsel during his testimony. See *Perry*, 488 U. S., at

281–282, and nn. 4–5; *Geders*, 425 U. S., at 87. The trial judge therefore instructed Villarreal's counsel not to discuss Villarreal's testimony overnight. But his order allowed Villarreal to confer with counsel about matters other than his ongoing testimony:

> "THE COURT: Normally your lawyer couldn't come up and confer with you about your testimony in the middle of the trial and in the middle of having the jury hear your testimony. And so I'd like to tell you that you can't confer with your attorney but [at] the same time you have a Sixth Amendment right to talk to your attorney.
>
> "So I'm really going to put the burden on [counsel] to tell you the truth. . . . I'm going to ask that [counsel] pretend that Mr. Villarreal is on the stand. You couldn't confer with him during that time.
>
> . . . . .
>
> "But I believe if you need to talk to your attorneys, I'm not telling you, you can't talk to them. But I'm going to rely on [counsel] to use your best judgment in talking to [Villarreal] because you can't—you couldn't confer with him while he was on the stand about his testimony. . . .
>
> "DEFENSE COUNSEL #1: All right. So just so I am clear and don't violate any court orders, that—because he is still on direct and still testifying, that it is your ruling that we cannot confer with our client?
>
> "THE COURT: Let me help you with that. For instance, suppose we go into a sentencing hearing and you need to start talking to him about possible sentencing issues, you can do that. Does that make sense? I don't want you discussing what you couldn't discuss with him if he was on the stand in front of the [j]ury.
>
> "DEFENSE COUNSEL #1: Okay.

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> "THE COURT: His testimony. I'm not sure whatever else you'd like to talk with him about while he's on the stand. But ask yourselves before you talk to him about something, is this something that—manage[s] his testimony in front of the jury? Does that make sense to you?
>
> "DEFENSE COUNSEL #1: Sure, it does.
>
> "DEFENSE COUNSEL #2: We aren't going to talk to him about the facts that he testified about.
>
> "THE COURT: All right. Fair enough. But at the same time—I'm going to put the burden on the lawyers, not on him, because he has a constitutional right to confer with you. At the same time, all lawyers are under—they're under different rules than the defendants are.
>
> . . . . .
>
> "And you're going to have to decide, if he asks you any questions and such, is this something that is going to be considered to be conferring with him on the witness stand while the jury is there or not." 707 S. W. 3d 138, 141–142 (Tex. Crim. App. 2024) (some alterations and boldface omitted).

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Villarreal's counsel objected to the judge's order, but the judge overruled that objection. *Id.*, at 142–143.

Villarreal resumed testifying the next day. Neither he nor his counsel reported that the trial judge's order impeded any discussions. The record does not reflect that they planned to discuss any matter even arguably covered by the judge's order. The jury later found Villarreal guilty of murder.

On appeal, Villarreal argued that the trial judge's order, by preventing him from discussing his ongoing testimony with his counsel, violated his Sixth Amendment right to counsel. The Texas Court of Appeals affirmed because a trial court may "limit [a defendant's] right to confer with his

attorneys during an overnight recess to topics other than his ongoing testimony." 596 S. W. 3d 338, 343 (2019). The Texas Court of Criminal Appeals also affirmed on the ground that a defendant has no right to discuss "ongoing testimony." 707 S. W. 3d, at 144–146.

This Court granted certiorari. 604 U. S. 1241 (2025).

II

The Sixth Amendment, made applicable to the States by the Fourteenth Amendment, guarantees to a criminal defendant the right to have "the Assistance of Counsel for his defence." It was enacted in response to English laws that sometimes forced defendants to represent themselves at trial. See *Garza* v. *Idaho*, 586 U. S. 232, 259 (2019) (THOMAS, J., dissenting). This Court has interpreted it to guarantee a defendant a right to discuss with counsel matters other than his ongoing testimony. The trial judge's order here allowed Villarreal and his counsel to discuss matters other than Villarreal's ongoing testimony overnight, so it did not violate his Sixth Amendment rights.

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A

Under our precedents, a defendant "has no constitutional right to consult with his lawyer while he is testifying." *Perry*, 488 U. S., at 281. Rather, "when he assumes the role of a witness, the rules that generally apply to other witnesses—rules that serve the truth-seeking function of the trial—are generally applicable to him as well." *Id.*, at 282. Criminal defendants originally did not testify in their own defense at trial. See *Ferguson* v. *Georgia*, 365 U. S. 570, 573–575 (1961). When they began doing so, this Court explained that they would do so "subject to all [the] criticisms and burdens" of other witnesses. *Reagan* v. *United States*, 157 U. S. 301, 305 (1895). It is common practice for trial judges to prohibit other witnesses from discussing their on-

going testimony with counsel. See *Perry*, 488 U. S., at 281–282, and nn. 4–5; *Geders*, 425 U. S., at 87.

This Court has recognized only one exception to the general rule that a defendant has no constitutional right to consult with his lawyer while he is testifying. In *Geders*, this Court held that a trial judge could not bar a defendant from talking "'about anything'" with counsel during an overnight recess. *Id.*, at 91. As this Court would explain, the judge's order in *Geders* was unconstitutional only because it would impede discussion of matters "beyond the content of the defendant's own testimony." *Perry*, 488 U. S., at 284. In *Perry*, this Court held that a trial judge therefore could bar all conferral with counsel during a 15-minute recess because the Sixth Amendment does not protect discussion of "th[e] testimony while it is in process." *Ibid.*

Allowing any witness to discuss his ongoing testimony with counsel, *Perry* explained, would undermine the truth-seeking function of the trial. "Once the defendant places himself at the very heart of the trial process," the trial court can ensure that "the story presented on direct is measured for its accuracy and completeness by uninfluenced testimony on cross-examination." *Id.*, at 282–283 (internal quotation marks omitted).

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B

The trial judge's order here complied with our precedents. The trial judge instructed defense counsel not to "discus[s] what you couldn't discuss with [Villarreal] if he was on the stand in front of the [j]ury," and explained that "you couldn't confer with him while he was on the stand about his testimony." 707 S. W. 3d, at 142 (boldface omitted). The trial judge otherwise allowed Villarreal and his counsel to meet and discuss anything that they wanted. *Ibid.* Under *Geders* and *Perry*, the trial judge's order was constitutional because Villarreal could discuss matters other than his testimony. See *Geders*, 425 U. S., at 88; *Perry*, 488 U. S., at 284. *Perry*, in fact, specifically endorsed orders that "permit con-

sultation between counsel and defendant during such a recess, but forbid discussion of ongoing testimony." *Id.*, at 284, n. 8. The order therefore did not deny Villarreal "the Assistance of Counsel for his defence." U. S. Const., Amdt. 6.

Perry also rejected Villarreal's main counterargument. Villarreal argues that because it is difficult to distinguish discussion of testimony from discussion of other matters, he should have been able to discuss his testimony in order to ensure that he could discuss other topics, too. Brief for Petitioner 24–38. But in *Perry*, three Justices dissented partly because they, like Villarreal, did not believe that it was "possible to distinguish discussions regarding trial strategy from discussions regarding testimony." 488 U. S., at 295, n. 8 (opinion of Marshall, J.). The *Perry* majority made that distinction nonetheless and endorsed orders that turn on that distinction. *Id.*, at 284, n. 8.

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III

I am unable to join the majority opinion because it unnecessarily expands these precedents. It purports to "announce" a "rule" under which a defendant has a constitutional right to "discussion of testimony" so long as that discussion is "incidental to other topics." *Ante*, at 477, 478, n. 5. It identifies new circumstances, not presented here, in which a defendant supposedly has a right to discuss matters related to his ongoing testimony. *Ante*, at 477–479. And it endorses a methodology under which "any conflict between the Sixth Amendment and the desire for untutored testimony must 'be resolved in favor of the right to the assistance and guidance of counsel.'" *Ante*, at 478.

The majority opinion finds no support in *Perry*. As for a general right to discuss testimony, this Court in *Perry* explained in straightforward terms that "we do not believe the defendant has a constitutional right to discuss [his] testimony while it is in process." 488 U. S., at 284; cf. *ante*, at 477–479.

Perry therefore endorsed orders that categorically "forbid discussion of ongoing testimony." 488 U. S., at 284, n. 8. That endorsement came in the context of a brief recess. *Id.*, at 284. But, unlike the majority opinion in this case, see *ante* at 477, 479, *Perry* never stated that those sorts of categorical orders are forbidden overnight. As for the potential conflict between the possibility for conferral and uncompromised testimony, see *ante*, at 478, *Perry* clarified that the Court would not read *Geders* to demand resolving them in favor of conferral in all cases. "[W]hen [a defendant] assumes the role of a witness, the rules that generally apply to other witnesses—rules that serve the truth-seeking function of the trial—are generally applicable to him as well." *Perry*, 488 U. S., at 282. Defendants, in other words, are generally "subject to" the same "criticisms and burdens" as other witnesses. *Reagan*, 157 U. S., at 305.

The majority opinion does not claim that its approach finds any support in the original meaning of the Sixth Amendment. The majority also does not claim that opining on matters not presented by the facts was necessary to decide this case, which involved an order that all agree was constitutional.

I respectfully concur in the judgment.

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REPORTER'S NOTE

The attached opinion has been revised to reflect the usual publication and citation style of the United States Reports. The revised pagination makes available the official United States Reports citation in advance of publication. The syllabus has been prepared by the Reporter of Decisions for the convenience of the reader and constitutes no part of the opinion of the Court. Other revisions may include adjustments to formatting, captions, citation form, and any errant punctuation. The following additional edits were made:

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None